

PEERPAL

# Therapist Agreement

This Agreement is between **PeerPal Digital**("PeerPal") and the therapist named below (the "Therapist"). It sets out how the Therapist works with clients through the PeerPal platform.

| | |
|---|---|
| Full legal name | Professional title |
| Registration number, where applicable | Clinic or practice, if applicable |
| Primary specialisation | Session fee (KSh) |
| M-Pesa number for payouts | Effective date |

## 1. Relationship and Responsibilities

**1.1** PeerPal provides a digital platform where clients can find and book independent therapists. The Therapist works independently and is not an employee or agent of PeerPal.

**1.2** The Therapist is responsible for their professional qualifications, clinical decisions, client care, and compliance with applicable laws and professional standards. PeerPal does not supervise or direct the Therapist's clinical work.

**1.3** PeerPal does not guarantee bookings, income, uninterrupted platform availability, or any therapeutic outcome.

**1.4** The Therapist must hold professional indemnity insurance appropriate to their practice, and must keep it in place while listed on the platform. This is a condition of listing.

## 2. Platform Services

**2.1** PeerPal may provide a therapist profile, booking and scheduling tools, video sessions, client payment collection, and therapist payouts, subject to platform availability.

**2.2** The Therapist's session fee is the amount recorded above and in their platform profile. The Therapist must not charge undisclosed fees for bookings made through PeerPal.

**2.3** Clients pay the session fee plus one PeerPal credit for each booking. The credit is PeerPal revenue. It is not part of the session fee and is not shared with the Therapist.

## 3. Payments

**3.1** **Revenue share.** For each completed paid session, 80% of the session fee is payable to the Therapist and 20% is kept by PeerPal. The split is calculated on the session fee actually collected, excluding refunded amounts and separately charged taxes, where applicable.

**3.2** **No other fees.** PeerPal pays payment processing costs and M-Pesa payout charges out of its 20%. The Therapist receives the full 80%, apart from refund adjustments under clause 3.5.

**3.3** **Payouts.** PeerPal pays the Therapist via M-Pesa to the number given above, ordinarily within 48 hours of session completion, once the dispute window in clause 3.4 has closed. Payouts depend on payment provider availability, accurate payout details, and any hold under clause 3.4.

**3.4** **Disputes.** A client may dispute a session within 24 hours of its completion. PeerPal may hold the payment for a disputed session while the dispute is resolved. PeerPal will explain a hold where practicable and will not arbitrarily withhold undisputed earnings.

**3.5** **Refunds.** If a session is refunded before it takes place, the client is refunded in full and the Therapist receives nothing for that session. If a refund is granted after a completed session, PeerPal may recover the Therapist's share of the refunded amount from the Therapist's future earnings. If there are no future earnings to recover from, PeerPal may ask the Therapist to repay it, and repayment is due within 14 days of the request.

**3.6** **Payment policy.** Refunds to clients are made in credits by default. The exact refund method and other payment details follow PeerPal's payment and refund policy, which PeerPal will make available to the Therapist.

**3.7** The Therapist is responsible for their own taxes and professional fees.

## 4. Professional Standards and Client Safety

**4.1** The Therapist confirms that they hold and will maintain the qualifications, registrations, and licences needed to provide their advertised services. They must give accurate credentials, practise within their competence and stated specialisation, obtain informed consent, keep appropriate clinical records and confidentiality, and refer clients where more suitable care is needed.

**4.2** PeerPal may verify credentials and suspend the Therapist's profile where qualifications cannot be verified or a credible concern arises about client safety, fraud, or professional misconduct. Where practicable, PeerPal will explain the concern and allow the Therapist to respond. PeerPal may act immediately where necessary to protect clients or comply with the law.

**4.3** The Therapist is responsible for assessing and responding to clinical risk in the sessions they conduct, including taking appropriate action where a client may be at risk of harm.

**4.4** PeerPal is a platform, not an emergency service. The Therapist must follow the escalation procedure in Schedule A and must not assume that an automated alert alone resolves an emergency.

## 5. Client Information and Data Protection

**5.1** Each party will comply with the Data Protection Act 2019 and with professional confidentiality obligations.

**5.2** **Roles.** The Therapist controls the clinical notes and client records they create. PeerPal processes them on the Therapist's behalf for hosting. PeerPal controls its own account, payment, and platform data.

**5.3** **Safeguards.** PeerPal applies appropriate technical safeguards to the clinical notes it hosts. PeerPal administrators may access those notes only to resolve disputes, address safety concerns, or meet legal requirements.

**5.4** The Therapist will use client information only for authorised professional purposes, keep it secure, keep records as the law requires, and tell PeerPal promptly of any suspected data breach involving information obtained through the platform. Client information must not be used for unrelated marketing or disclosed to unauthorised persons.

**5.5** Information may be disclosed where the law or professional obligations permit or require it.

**5.6** The Therapist will not encourage clients introduced through PeerPal to move paid sessions off the platform to avoid PeerPal's fees. This does not prevent contact needed for clinical care, emergencies, referrals, safeguarding, or other legitimate professional purposes.

## 6. Bookings, Cancellations and Complaints

**6.1** Sessions booked through PeerPal ordinarily take place through the platform's video interface. If a technical problem prevents a session from going ahead, the applicable rescheduling or refund policy applies.

**6.2** If the Therapist does not join a confirmed session within 10 minutes of the scheduled start without reasonable justification, PeerPal may treat it as a no-show and refund the client. Repeated no-shows may lead to booking restrictions, suspension, or termination.

**6.3** The parties will cooperate reasonably in investigating complaints, disputed sessions, refunds, and payment errors. PeerPal may temporarily restrict access while it investigates a credible concern involving client safety, fraud, confidentiality, or serious misconduct.

## 7. Liability

**7.1** Each party is responsible for its own acts and omissions.

**7.2** PeerPal is responsible for platform and system failures, including data breaches caused by its systems and technical errors on its side.

**7.3** The Therapist is responsible for reasonable direct losses arising from their negligence, professional misconduct, fraud, or material breach of this Agreement, except to the extent caused by PeerPal's own acts or omissions.

**7.4** This Agreement sets no cap on either party's liability. Nothing in it excludes liability that cannot lawfully be excluded.

## 8. Suspension and Termination

**8.1** Either party may end this Agreement by giving seven days' written notice.

**8.2** PeerPal may suspend access or end this Agreement immediately where reasonably necessary because of serious misconduct, fraud, invalid professional credentials, a credible client-safety concern, misuse of client information, or a material breach of this Agreement. Where practicable, PeerPal will explain the grounds and allow the Therapist to respond.

**8.3 Payments on termination.** PeerPal pays all earned and undisputed session payments in full. Amounts held for active disputes are released after a 30-day resolution window, in line with the outcome of each dispute.

**8.4 Bookings on termination.** The Therapist has seven days from the notice or termination date to complete or hand off confirmed bookings. After that, PeerPal will cancel any remaining bookings and refund the clients. Where PeerPal ends this Agreement under clause 8.2, it may cancel and refund bookings sooner where needed to protect clients.

**8.5** On termination, the Therapist must stop presenting themselves as an active PeerPal therapist. The parties will cooperate on client communication and lawful record keeping.

**8.6** Confidentiality, outstanding payment obligations, and any other obligations meant to continue after termination remain in effect.

---

## 9. General Terms

**9.1** This Agreement is governed by the laws of the Republic of Kenya. The parties will first try to resolve any dispute through good-faith discussion. If that fails, either party may seek relief from a court of competent jurisdiction in Kenya.

**9.2** This Agreement is read alongside PeerPal's privacy notice and platform policies made available to the Therapist. If a policy conflicts with this Agreement, this Agreement prevails unless the parties agree otherwise in writing. Any change to the revenue share or other commercial terms needs written agreement from both parties.

**9.3** Any amendment must be in writing and accepted by both parties. If a provision is found unenforceable, the rest of the Agreement continues to apply to the extent the law permits.

**9.4** A Therapist who refers other therapists to PeerPal may sign a separate Referral Addendum. The Addendum does not change this Agreement.

---

## Schedule A: Emergency Escalation Procedure

**A1 What the platform does.** Automated escalation to PeerPal administrators operates continuously.

**A2 What PeerPal does not do.** PeerPal does not guarantee a response time, does not provide emergency dispatch, and does not monitor every session. An administrator alert is not an emergency response.

**A3 What the Therapist does.** The Therapist assesses risk during the session, acts in line with their professional duties, and contacts emergency services or other appropriate services where a client is at immediate risk. The Therapist records what happened in their clinical notes.

**A4 Telling PeerPal.** Where a safety concern arose in a platform session, the Therapist should tell PeerPal as soon as practicable once the situation is under control, at support@peer-pal.com or info@peer-pal.com. These addresses are not emergency lines.

## Signatures

By signing, the parties confirm that they have read and understood this Agreement and agree to its terms.

### FOR PEERPAL

Kiriinya Antony
Authorised representative

Co-Founder
Title

antonykkiriinya@gmail.com
Email

Ak
Signature

15/10/026
Date

### THERAPIST

Full legal name

Signature

Date